

24STCV32071 24STCV32071

County: los-angeles

Division: Civil Law and Motion

Department: 309

Hearing date: 2026-09-22

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Case Number: 24STCV32071 Hearing Date: September 22, 2026 Dept: 309

Superior

Court of California

County

of Los Angeles

DEPARTMENT 309

TENTATIVE RULING

SARAH

DAKKAK

vs.

SAADIA

GROUP, LLC et al.

Case No.: 24STCV32071

Hearing

Date: September 22, 2026

Defendants'

motion to dismiss is DENIED. However, Plaintiff is sanctioned, jointly and severally with counsel, \$1,750, due within 10 days of entry of this order.

On 12/5/2024,

Plaintiff Sarah Dakkak (Plaintiff) filed suit. On 1/31/2025, Plaintiff filed a first amended complaint (FAC) against Saadia Group, LLC, S3 Holding LLC, S3 Group Management, LLC, Olivia Miller, Inc., Nader Basiliou, and Erick Klein, alleging: (1) hostile work environment; (2) quid pro quo; (3) discrimination; (4) retaliation; (5) failure to prevent; (6) sexual battery; (7) whistleblower retaliation; (8) negligent hiring, supervision, and retention; (9) violations of the Ralph Act; (10) failure to timely furnish personnel records; (11) failure to timely furnish payroll records; (12) intentional infliction of emotional distress; (13) constructive discharge; and (14) wrongful termination.

On 6/24/2026, Defendants Saadia Group, LLC, S3 Holding LLC, S3 Group Management, LLC, Jack Saadia, and Olivia Miller, Inc. (collectively, Defendants) moved for dismissal.

Discussion

Defendants

argue that Plaintiff's claim should be dismissed, arguing:

Plaintiff:

(1) bargained for leave to amend in lieu of a demurrer; (2) secured a court order fixing the deadline to file her Third Amended Complaint; and (3) thereafter, Plaintiff allowed that stipulated deadline to expire without Plaintiff filing anything at all. The consequence of that failure is dismissal. (Code Civ. Proc., § 581, subd. (f)(2).) Plaintiff's failure was neither inadvertent nor excusable. Plaintiff had prepared her pleading well in advance of the stipulation, and Plaintiff did not need to engage in any effort beyond amending the proof of service and submitting the document for electronic filing—a five-to-ten-minute process. (Lesches Decl., ¶ 12.) There is no reasonable interpretation of the facts other than the conclusion that Plaintiff deliberately elected to breach her stipulation to engage in that filing—a five-minute effort—within seven days.

Moreover,

Plaintiff knew that Defendants intended to file a special motion to strike under section 425.16 ("anti-SLAPP") immediately after Plaintiff's Third Amended Complaint was on file. Plaintiff learned of such facts by way of various communications out of court, in court, through the June 16, 2026 ex parte proceedings. By withholding the very pleading that she had stipulated to file, no later than January 22, 2026, Plaintiff manufactured a procedural posture

that sought to preserve her pending discovery motions while postponing Defendants' anti-SLAPP. That was a deliberate, tactical choice to engage in noncompliance with Plaintiff's own stipulation; and, for such reasons, the consequences of Plaintiff's noncompliance should attach.

(Motion,
3:3-19.)

Given
that Plaintiff has since filed the third amended complaint, and Defendants' special motion to strike is pending, the Court finds insufficient prejudice to justify the extreme sanction of dismissal of this action. However, the Court does find Plaintiff's failure to abide by a stipulated deadline to warrant sanctions.

Based
on the foregoing, Defendants' motion to dismiss is denied. However, Plaintiff is sanctioned, jointly and severally with counsel, \$1,750 (\$350/hr x 5), due within 10 days of entry of this order.

It is so ordered.

Dated: September
, 2026

Hon. Jon R.
Takasugi

Judge of the
Superior Court

Parties who intend to submit on this tentative must
send an email to the court at smcdept17@lacourt.org
by 4 p.m. the day prior as directed by the instructions provided on the court
website at www.lacourt.org. If a party submits
on the tentative, the party's email must include the case number and must
identify the party submitting on the tentative.
If all parties to a motion submit, the court will adopt this
tentative as the final order. If the department
does not receive an email indicating the parties are submitting on the

tentative and there are no appearances at the hearing, the motion may be placed off calendar. For more information, please contact the court clerk at (213) 633-0517.